

ESSAY

LVI

Of judicature.

JUDGES ought to remember that their office is *jus dicere*,¹ and not *jus dare*²—to interpret law, and not to make law or give law; else will it be like the authority claimed by the Church of Rome, which, under pretext of exposition of Scripture, doth not stick to add and alter, and to pronounce that which they do not find, and by show of antiquity to introduce novelty. Judges ought to be more learned than witty, more reverend than plausible, and more advised than confident. Above all things, integrity is their portion and proper virtue. “Cursed (saith the law) is he that removeth the landmark.” The mislayer of a mere stone is to blame; but it is the unjust judge that is the capital remover of landmarks, when he defineth amiss of lands and property. One foul sentence doth more hurt than many foul examples; for

¹ To expound the law,

² To make the law.